

University of Gondar, School of Law Model Exam for LLB Regular Students

1. All are inheritable properties, **except**:

- A. Cattle
- B. Indemnity payments
- C. Patents
- D. Shares

ANSWER: B

2. One is **false** about the Scheme of Devolution through intestate succession

- A. Devolution is based on presumed intention of the deceased
- B. A relative of closer degree will take ahead of a relative of more remote degree
- C. Devolution is based on degrees of affinity
- D. All

ANSWER: C

3. All have a Capacity to Make a **Will**. **Except**

- A. Insane persons
- B. Notoriously insane
- C. Legally interdicted persons-
- D. None

ANSWER: B

4. Which one of the following Condition vitiates consent and result the invalidation of a will as a matter of principle?

- A. Violence
- B. Undue influence
- C. Fraud
- D. Error

ANSWER: A

5. Which of the following factors **necessitated** the revision of the Family Law provisions of the 1960 Civil Code of Ethiopia?

- A. Providing the legal basis which guarantees the equality of the spouses-during the conclusion, duration and dissolution of marriage.
- B. The need to settle disputes arising out of marriage by a competent authority in a just efficient manner.
- C. Aligning the family law provisions with the FDRE Constitution and International Human Rights Instruments ratified by Ethiopia
- D. All

ANSWER: D

6. Of the following **do not** mandates the law to step in to govern personal and pecuniary effects of marriage

- A. Where the contract of marriage is inconsistent with mandatory provision of the law
- B. Where the contract of marriage is invalid
- C. Where the contract of marriage concluded after marriage is not approved by court
- D. Absence of contract of marriage
- E. None

ANSWER: E

7. Of the following one is **different from the other statements?**

- A. A marriage concluded by a women before 180 days after the death of her ex-husband can be invalidated by the application of public prosecutor
- B. Conclusion of marriage before unauthorized officer of civil status is one ground to invalidate marriage.
- C. Pecuniary effect of marriage do not varies depending up on the forms of celebration of marriage
- D. The legal consequence of marriage is determined by the intention of the spouses.
- E. C & D

ANSWER: C

8. Which of the following is **incorrect** about marriage under the Ethiopian Federal Family Code?

- A. Religious acceptance alone of a bigamous marriage constitutes no legal justification for its legal recognition

- B. Rules governing dissolution of monogamous marriage are also applied to the dissolution of marriages in bigamous union.
- C. Bigamous marriage produces legal effects as regards property division.
- D. None

ANSWER: A

9. Of the following one is **odd**

- A. Pension
- B. Indemnities
- C. Property acquired gratuitously.
- D. Compensation for expropriation of house built in wedlock.
- E. All

ANSWER: D

10. Of the following one is **different** from the others

- A. Marriage concluded by fundamental mistake.
- B. Marriage concluded by minor.
- C. Marriage concluded by juridical interdicted person.
- D. Bigamous marriage

ANSWER: D

11. One of the following is odd

- A. Object
- B. Consent
- C. Capacity
- D. None

ANSWER: A

12. Which one of the following is false

- A. Cancellation and invalidation have prospective effect.
- B. In case of unconscionable contract, uninjured party can halt an invalidation action by paying damage, though the victim doesn't want it.
- C. A contract which has an impossible object has an effect of restitution.
- D. All
- E. None

ANSWER: E

13. Good faith works in the following cases except

- A. Conditional contracts
- B. Period of limitation
- C. Reinstatement
- D. Interpretation of contractual terms
- E. None

ANSWER: B

14. Which one of the following is correct?

- A. The giving of earnest shall be proof of the performance of the contract.
- B. Where penalty for non-performance is provided in the contract, in case of non-performance of the contract, penalty and interest of the penalty can be claimed.
- C. In case of conditional contracts, period of limitation starts to run from the rights under the contract could be exercised.
- D. None

ANSWER: C

15. Mr. Eyasu, Mr. Oboya, and Ms. Bethelhem have borrowed 200,000 Birr from Alemu on 21/03/2023 to be returned back on 21/03/2024. In the meantime, Mr. Mebrat became a joint surety to Mr. Eyasu. Unfortunately, the whereabouts of Eyasu and Bethelhem was not known when the maturity date due. Having the case at hand, which one of the following is incorrect?

- A. Mr. Alemu can claim all his money from Mr. Oboya
- B. Mr. Oboya is required to pay only his share
- C. Mr. Alemu can claim the share of Mr. Eyasu from Mr. Mebrat before he sued the principal debtor
- D. B and C
- E. A and C

ANSWER: B

16. One of the following statements is **not true**.

- A) According to the Ethiopian extra-contractual liability law, a person shall not be liable for the damage he causes to another due to his/her failure to act in certain way

- B) According to the Ethiopian extra-contractual liability law, a person shall not be liable for the damage he causes to another due to his/her negligent act.
- C) According to the Ethiopian extra-contractual liability law, a person shall not be liable for the damage he/she causes to another when violating criminal law as he/she will be responsible under the criminal law
- D) All of the above

ANSWER: D

17. One of the following statements **is true**.

- A) According to the Ethiopian extra-contractual liability law, a person shall always be free from paying compensation as long as he/she shows that he/ she commits no fault (offence) against a person who sustains and claims compensation.
- B) According to the Ethiopian extra-contractual liability law, there are limited circumstances where a person would be liable and pay compensation even if he/she commits not fault (offence) against a person who claims compensation.
- C) According to the Ethiopian extra-contractual liability law, if a building, machine or motor vehicle causes damage to another person, the owner of the building, machine or motor vehicle may be required to pay compensation though the owner does not commit fault (offence) against a person who sustains damage
- D) B and C.

ANSWER: D

18. One of the following statements is **not true**.

- A) A mother or father shall not **be** liable under the extra-contractual liability law of Ethiopia where his /her minor child incurs liability.
- B) Under the extra-contractual liability law of Ethiopia, an employer shall be liable where its employee commits fault other than “professional fault” and causes damage to another person.
- C) Under the extra-contractual liability law of Ethiopia, a minor is not responsible, in any circumstance, for paying compensation for a person who sustains damage though he/she incurs liability.
- D) All of the above

ANSWER: D

19. One of the following statements **is true**?

- A) According to the Ethiopian extra-contractual liability law, harm /damage is divided in to two: material and moral damages.
- B) According to the Ethiopian extra-contractual liability law, harm/damage can be present or future damage
- C) According to the Ethiopian extra-contractual liability law, compensation, in principle at least, should be equal to damage.
- D) All of the above

ANSWER: D

20. Which one of the following is TRUE about servitude?

- A. Registration is not a requirement for servitude to be binding against the parties.
- B. Servitude may be extinguished if the owner of the immovable changed.
- C. Registration is required for the right to be binding against third parties.
- D. Since servitude is strictly personal, Registration is required for the right to be binding against third parties.

ANSWER: C

21. One of the following is valid according to the notion of property and property Law.

- A. Patrimony is property.
- B. Possession arising from a personal relationship does not give rise to acquiring ownership by occupation or *usucaption*.
- C. Right of Pre-emption is a *right inpersonam*.
- D. The derivative owner has a better legal protection than the possessor in good faith.

ANSWER: B

22. Suppose you have a claim of 10,000 Birr incorporated into document of security to bearer. Thus, which one of the following is **TRUE** according to our Property Law?

- A. The claim is not an object of property.
- B. The claim is not within the scope of Property Law.
- C. The law treats the claim as an incorporeal thing.
- D. You may transfer the claim to another person by transferring possession of the document.

ANSWER: D

23. Mr. Abebe is owner of a six story hotel building. Accordingly, which of the following may he decide on his building based on our Civil Code?
- A. He may pledge it for debt security.
 - B. He may transfer ownership of the building by transferring possession of the same.
 - C. His is also owner of the installations.
 - D. Since he has the widest real right, he may create any real right he desires on the building.

ANSWER: C

24. One of the following is TRUE according to our property Law.
- A. Building is intrinsic elements of the land.
 - B. Transfer of possession of corporeal chattels always entails transfer of ownership.
 - C. A possessor is any person having physical control over a thing.
 - D. Co-owners always have defined share.

ANSWER: D

25. Suppose you borrowed a book from your friend. Now that you are in this exam room, you left the book inside your locker that situates in your dorm-room. Therefore, which one of the following is **TRUE** according to our Property Law?
- A. Since you are in the exam room now, you do not have actual control over the book.
 - B. You are mere holder of the book.
 - C. You are the possessor of the book.
 - D. You have possession over the book; but, your friend lost possession of the book.

ANSWER: C

26. Ketsela agreed to sale the door of his warehouse for 2000 birr to Mulugeta with the intention to fix a better door. They are ready to discharge their obligation within two weeks. Accordingly, which one of the following is true?
- A. Their dealing is governed by the law governing sale of immovable things.
 - B. The door falls within the scope of Article 1127 of the Civil Code.
 - C. Ownership will be transferred with simple delivery.
 - D. The door follows the warehouse.

ANSWER: C

27. Which of the following is not true with respect to the duties of traders?

- A. All traders have a duty to keep books and accounts, except petty traders.
- B. Traders should have business licenses, which enable them to carry on business.
- C. All traders, except joint ventures, should have to register and acquire legal personality.
- D. Traders have a duty to pay the necessary tax to the government.

ANSWER: C

28. Limited partners of the limited partnership can make contributions to the company in one of the following forms, except:

- A. Cash
- B. B. Skill
- C. C. Property
- D. D. Incorporeal Rights

ANSWER: B

29. One of the following is not correct about limited liability partnerships:

- A. Partners are only licensed professionals.
- B. Only a licensed professional can be the manager of the partnership.
- C. The partners are jointly and severally liable for the partnership.
- D. The partners' liability for the debts of the partnership is limited to their contribution.

ANSWER: C

30. Which one of the following individuals involved in trade is responsible for assisting the trader by doing work of a non-manual nature?

- A. Commercial Employees
- B. Commercial Representative
- C. Commercial Travelers
- D. Manager

ANSWER: A

31. There are a number of differences between a share company and a private limited company. Which one of the following is not a valid difference?

- A. A share company may issue different classes of shares, whereas a private limited company can issue only ordinary shares.
- B. A private limited company may form without a board of directors, whereas a share company must have at least three directors.
- C. Private limited companies can be created with a trivial amount of capital, whereas public companies must have an allotted minimum share capital.
- D. Share companies may offer their shares to the public, whereas private limited companies may not.

ANSWER: C

32. Mekdela Share Company commences business and issues one thousand shares with a nominal value of 3000 ETB each. The company allows its subscribers to pay 2000 ETB on subscription and the remainder at a later date. All the subscribers chose to do this, and all the shares are sold. What is Mekdela Share Company's paid-up share capital?

- A. 1 million ETB
- B. 3 million ETB
- C. 1.75 million ETB
- D. 2 million ETB

ANSWER: D

33. Petros is a director of ABC S.C. While acting for the company, he becomes aware of a loan arrangement that the company offers. He takes advantage of this opportunity himself and makes a considerable profit. Can Petros keep the benefit?

- A. Yes, if the MoA allows the directors to authorize the transaction and they do so prior to Petros entering into it.
- B. No. He cannot make any transactions with the company he manages at all.
- C. Yes, if the other directors gave prior authorization to Petros entering into the transaction.
- D. Yes, if Petros obtains the consent of the company in a general meeting.

ANSWER: C

34. Which one of the following statement is true?

- A. The Ethiopian constitution is unwritten
- B. Where no special process is required to amend a constitution it is called rigid

- C. Ethiopia is an example of state type in which there is a complete separation of powers
- D. In a federal state the federal organ of government are not subordinate to regional organ of government

ANSWER: D

35. Which one of the following is a key feature of the constitution of a unitary state?

- A. The powers of government are divided between government for the whole country and regional in such a way that each region is constitutionally independent within its own sphere
- B. The central government exercises its powers without any control from the regional government
- C. All governmental powers are centralized and although legislative and executive power may be given to regional and local organs of government these remain subordinate to the central legislature and may be overridden by it
- D. The head of a state is an elected president

ANSWER: C

36. Which one of the following statement is false concerning the key characteristics of the Ethiopian constitution?

- A. The head of the state is a king whose entitlement to the position is determined by heredity
- B. In Ethiopia constitutional law forms the fundamental law of the nation and an act of legislation that is inconsistent with to nit is void
- C. The legislature is subordinate to the constitution
- D. The constitution is rigid

ANSWER: A

37. Which one of the following statement is true

- A. Ethiopia is a unitary state
- B. Ethiopia is a republic with an elected head of state
- C. The government in Ethiopia has the power to override the constitution
- D. The Ethiopian constitution is federal, rigid, and based on partial degree of separation of power

ANSWER: D

38. Sovereignty under the constitution belongs to
- A. The parliament
 - B. The people
 - C. Nations, nationalities, and people
 - D. The executive, judiciary and legislature

ANSWER: C

39. Which one of the following power belongs to the regional government under the Ethiopian constitution?
- A. Make treaties
 - B. Provide schools and education
 - C. Create an army force
 - D. Print money

ANSWER: B

40. Which one of the following is a branch or part of government
- A. regional government
 - B. Legislative
 - C. Auditor general
 - D. Election board

ANSWER: B

41. Which one of the following defines specific crimes and arranges them into groups according to subject matter?
- A. The general part of criminal law
 - B. The special part of criminal law
 - C. Substantive criminal law
 - D. Procedural criminal law

ANSWER: B

42. A party liable for separate offenses following a crime is

- A. Accessory
- B. Accomplice
- C. Solicitation
- D. Instigator

ANSWER: A

43. Suppose Mr. X has administered a poison to Mr. Y. A passerby Mr Z took the poisoned person to hospital and was able to save the life of the victim. In this case the intended result is said to have been aborted, thence rendering the offence a case of _____

- A. Complete attempt
- B. Incomplete attempt
- C. Impossible offences

ANSWER: A

44. A roofer on a tall building, without bothering to look, throws a heavy board onto a busy street below; the board kills three people. This is a good example for

- A. Advertent negligence
- B. Inadvertent negligence
- C. Dollus eventualis
- D. Intention

ANSWER: C

45. The theory of prohibition against retroactive criminalization is also explained in the maxim

- A. Ex post facto laws
- B. Autrefois acquit and autrefois convict
- C. Nullem crimen sine lege
- D. Lex praevia rule

ANSWER: D

46. If D is a hunter and during a hunt at night in the forest shoots at a shape he takes for a wild boar, but which in fact is his fellow hunter V, then D is
- A. Guilty of negligent homicide because the objects are of an unequal nature.
 - B. Guilty of intentional homicide because the victim is a friend.
 - C. No guilt on the part of Mr D because it is a mistake of fact.
 - D. Guilty of reckless homicide because he has some other object in his mind.

ANSWER: A

47. Suppose a terrorist plants a bomb that is set to explode the moment someone touches it. A traffic warden touches the bomb, setting it off, and killing a passerby. Thus, participation by
- A. The terrorist is a moral criminal and traffic warden is an accomplice
 - B. The terrorist is a material criminal and traffic warden is an instigator
 - C. The terrorist is indirect criminal and traffic warden is an innocent agent
 - D. The terrorist and traffic warden is principal one.

ANSWER: C

48. Tax should be collected with minimized administrative and compliance costs. This idea best explains which of the following principles of taxation?
- A. Certainty
 - B. Productivity
 - C. Elasticity
 - D. Efficiency

ANSWER: D

49. Which one of the following is the characteristic of the Ethiopian income tax system?
- A. It taxes Ethiopian residents who derived income from their permanent establishment operating outside Ethiopia.
 - B. It follows a global income tax structure.
 - C. Nationality of taxpayers is one of the grounds to assume jurisdiction.
 - D. It is purely scheduler.

ANSWER: A

50. Among the following, one is **true** about the VAT regime of Ethiopia.

- A. It adopted a subtraction method of calculating VAT liability.
- B. It adopted a consumption type VAT.
- C. It adopted the origin principle, thus, exports are taxed with zero rate.
- D. Any kind of tax paid to business related inputs is allowed to rebate.

ANSWER: B

51. Which one of the following is the feature of direct taxes?

- A. Convenience for the taxpayers.
- B. They are hidden taxes.
- C. Economical for the government
- D. Violate vertical equality

ANSWER: C

52. Identify the income tax exempted source:

- A. Compensation paid to the employee for personal injury
- B. Child support payments
- C. Public award for outstanding performance
- D. All

ANSWER: D

53. Which one of the following is **wrong** about the tax dispute settlement procedure of Ethiopia?

- A. Passing through the internal review procedure of the revenues authorities is not a mandatory step to take a case to the tax appeal commission.
- B. Taxpayers can take their case to the tax appeal commission only after paying 50% of the tax in dispute.
- C. Appeal to the Federal High Court is permitted but only on issues of law.
- D. The burden of proving the tax decision is incorrect is imposed on the taxpayer.

ANSWER: A

54. Which one of the following is **true** about power of taxation in Ethiopia?

- A. Taxing employees of a share company located in a regional state is concurrent power of taxation.

- B. The principle of adverse impact limitation is recognized under the FDRE Constitution; hence, in exercising their power of taxation, both the federal and regional governments must not adversely affect their relationship.
- C. Taxing undesignated or residual income sources is the power of the federal government.
- D. Regional governments have the right to collect customs duty.

ANSWER: B

55. Of the following one is **not** the tax base of Schedule “C” of the Federal Income Tax Proclamation:

- A. A gain from the disposal of trading stock.
- B. Fees collected for the provision of services.
- C. A gain from disposal of capital assets.
- D. A gain from the disposal of business assets.

ANSWER: C

56. One among the following is not a legal requirement for statehood in international law.

- A. Defined territory
- B. Effective government
- C. Permanent population
- D. None

ANSWER: D

57. Which one of the following is wrong statement about jurisdiction and immunity?

- A. State jurisdiction may extend beyond its territory over persons and things which have a national link.
- B. There are certain persons, property and events within a State territory which are immune from its jurisdiction.
- C. Although legislation is primarily enforceable within a State territory, it may extend beyond its territory in certain circumstances.
- D. A State can enforce its laws upon foreign territory without the consent of the host State.

ANSWER: D

58. Identify the wrong statement.

- A. Accession is when a state accepts the opportunity to become a party to a treaty already negotiated and signed by other states.
- B. Adoption is a formal act by which the form and content of a proposed treaty text are established and it is the expression of the consent of the states participating in the treaty-making process.
- C. Reservation is a declaration made by a state by which it wants to exclude or alter the legal effect of certain provisions of the treaty in their application to that state which it does not want to comply.
- D. None

ANSWER: D

59. All are specialist areas of international law except,

- A. The International Law of the Sea.
- B. International Trade Law.
- C. International Environmental Law.
- D. None

ANSWER: D

60. Identify the wrong statement.

- A. Those immovable properties situated outside the successor state, or in the predecessor state, it will continue to that of the predecessor state.
- B. In case of dissolution of a state, where the predecessor state ceases to exist, it would appear that its property abroad should be divided proportionately between the successor states.
- C. A succession of States does not as such affect the rights and obligations of creditors.
- D. All

ANSWER: D

61. Which one of the following is true about extradition treaties?

- A. For extradition process, the extraditable offences should be mentioned in a list added to the treaty.
- B. Extradition is the practice of sending a foreign criminal suspect covertly to be interrogated in a country with less rigorous regulations for the humane treatment of prisoners.
- C. As a principle, extradition shall be made when offenses punishable by both the laws of the requesting and the requested country.
- D. All except B

ANSWER: D

62. From which one of the following the origins of human rights can be traced upon?

- A) In Greek philosophy
- B) In various world religions
- C) In the Age of Enlightenment
- D) All

ANSWER: D

63. Which one of the following is not part of the Bill of International Human Rights Instruments?

- A) International Covenant on Civil and Political Rights (ICCPR)
- B) Convention on the Rights of the Child (CRC)
- C) International Covenant on Economic, Social and Cultural Rights (ICESCR)

D) Universal Declaration of Human Rights (UDHR)

ANSWER: C

64. Which one of the following statements is not correct?

- A) Human rights are universal
- B) Human rights can be culturally relative
- C) Human rights can be divided into generations
- D) Some rights are basic than others

ANSWER: D

65. Which one of the following statements is not correct?

- A) Classic rights are often seen not to require the non-intervention of the state
- B) Social rights' require active intervention on the part of the state
- C) Human rights can be divided into generations
- D) Classification of human rights into generations is incoherent

ANSWER: A

66. Choose the correct statement from the following

- A) Civil and political rights impose only negative obligations
- B) There are no immediate obligations on states regarding socio-economic rights.
- C) Socio-economic rights are to be progressively realized by the states and they cannot be enforced before courts
- D) Non-state actors are responsible for violations of human rights

ANSWER: D

67. One of the following is not included from the 'four freedoms' mentioned by F. Roosevelt

- A) Freedom from want
- B) Freedom from fear
- C) Freedom of expression
- D) Freedom of thought

ANSWER: D

68. Choose the correct statement from the following

- A) Convention on the Elimination of Discrimination against Women is the most ratified international human rights instrument
- B) There are currently ten human rights committee bodies that monitor international human rights
- C) Individuals are entitled to communicate to treaty bodies against violation of their rights without limitation
- D) There are two optional protocols to the Convention on the Rights of the Child (CRC)

ANSWER: B

69. Which one of the following is not a cause for the withdrawal of judge's from a bench?

- A/ where a judge has some relations to a party or an advocate.
- B/ where a judge was a tutor or legal representative of a party.
- C/ where a judge has some prior connection with the case.
- D/ where the case is very problematic and it may give rise to some complicated issues of law.

ANSWER: D

70. Which one of the following court proceeding is not commonly conducted at the stage of first hearing under the Ethiopian Procedure law?

- A/ Identification and oral examination of witnesses
- B/ Framing of issues
- C/ Ruling on preliminary objections.

D/Adjudication without trial

ANSWER: A

71. Which one of the following is true about the non-appearance of parties at the date fixed for the hearing of a suit?

A/If both parties (plaintiff and defendant) fail to appear on the date fixed for the first hearing of a suit, the court shall strike out a suit.

B/If the appellant and respondent fail to appear on the first date of hearing of appeal, the appeal shall be dismissed.

C/ The court may order an adjournment of case if both parties fail to show up before a court.

D/When the defendant appears with denial of a claim, but the plaintiff fails to appear the court shall dismiss a case.

ANSWER: C

72. Which one the following is not the result of Ex- parte hearing ?

A/The court decides that the defendant failed to appear has admitted the claim of the plaintiff.

B/The defendant in whose absence a case is heard and decided can request the setting aside of ex-parte decision

C/The defendant can never lodge an appeal before seeking the request of setting- aside of ex-pirate order.

D/The defendant could appeal on the ex-parte order regardless of prior request for setting- aside of ex-pirate order in the court of rendition.

ANSWER: C

73. Which one of the following is correct on the basis of the contents of Ethiopian Civil procedure law?

A/parties cannot be witness on their own case.

B/Hearsay evidences have relevancy.

C/ Burdon of proof lie on the plaintiff in all scenarios.

D/Parties could introduce or produce documentary evidences at any stage of the trail as of right.

ANSWER: A

74. Which one of the following statement is true?

A/ It is a widely accepted proposition that procedural laws are more important than substantive laws.

B/ Ethiopian courts are held to assume judicial jurisdiction in Personam where the cumulative requirements of the defendant is an Ethiopian national or domiciliary, has consented (expressly or impliedly) to the exercise of jurisdiction by the Ethiopian court and the subject matter of the suit occurred or is situated in Ethiopia

C/Existence either of the judicial, material or local jurisdiction is sufficient to hold valid jurisdiction of courts in Ethiopia.

D/ The Civil Procedure Code of Ethiopia do not have an explicit rule on mandatory joinder of plaintiff.

ANSWER: D

75. Which one of the following is different from others from the perspective of jurisdiction of courts?

A/ Opposition Application

B/ Re-view of Judgment

C/ Appeal trial

D/ reviewing procedural irregularity

ANSWER: C

76. Which one of the following is not the pre-requisite of review of judgment pursuant to the Civil Procedure law of Ethiopia?

A/ No appeal has been taken from the judgment or no appeal lies.

B/ The newly discovered evidence must be discovered after the judgment is rendered and affect the decision.

C/ The new evidence must be of such nature as to suggest improper conduct (forgery, perjury, bribery or the like).

D/An application for judicial review are bared by period of limitation unless lodge within a month such new evidence is discovered.

ANSWER: A

77. Which one of the following is **not true** about the arrest in Ethiopia?

- A. Ethiopian criminal procedure law permits an arrest without a warrant by anyone capable to restrain the suspect.
- B. The criminal procedure grants the police specifically identify some offenses as legitimate reasons to arrest without a warrant based on consideration of circumstances.
- C. According to Ethiopian criminal procedure law, an arrest shall be made from 6 AM to 6 PM (daytime).
- D. The 'government officer' can arrest the suspect without a warrant in exceptional circumstances for crimes of terrorism.

ANSWER: C

78. Which of the following statement is **not true** about the Ethiopian criminal trial process?

- A. In the Ethiopian criminal trial process, confession may not be registered without any further considerations.
- B. If the accused admitted the charge in the trial process, it is impossible to revoke his/her admission.
- C. Leading question is appropriate in the process of cross-examination of prosecutors' witness testimony.
- D. In the process of Examination in chief, witness asked a general question regarding the subject matter of the case.

ANSWER: B

79. Which one of the following is **not correct** about a criminal charge?

- A. At any stage of the proceeding, the public prosecutors can request withdrawal of a charge from the court.
- B. The prosecutors can amend a charge whenever interested.
- C. The prosecutors can frame a charge by merging two or more accused for two or more counts of crimes.
- D. No one shall be tried without a charge except for petty offenses.

ANSWER: B

80. Which one of the following is **not true** about an appeal in Ethiopian criminal procedure?
- A. Appeal right granted once for each party in the case.
 - B. Exceptionally, an appeal can be initiated from the interlocutory decisions when if the decision end the case.
 - C. Application for cassation is similar to an appeal in criminal proceedings.
 - D. Delayed appeal can be accepted by the court in written application of leave to appeal out of time.

ANSWER: C

81. One of the following is NOT the concern of “relevancy” of evidence?
- A. The logical connection that the alleged fact may have with the fact in issue
 - B. The probative value of an evidence
 - C. The prejudicial effect of the proposed evidence
 - D. Sufficiency of evidence

ANSWER: D

82. The first question to ask in respect of every item of proposed evidence is _____?
- A. Is the evidence admissible
 - B. Is the evidence relevant
 - C. Is the evidence sufficient
 - D. Is the evidence reliable

ANSWER: B

83. One of the following rules of evidence law restricts the use of extrinsic evidence, be it oral or written; limiting the proof of the fact only to the contents of the document under consideration?
- A. The parole evidence rule
 - B. The best evidence rule
 - C. The rule of examination of witness
 - D. The rule of hearsay

ANSWER: A

84. One of the following facts is NOT relevant in criminal cases?
- A. Facts of “Res Gestae”
 - B. Facts of opportunity
 - C. The temporary conduct(s) of the accused person subsequent to a crime

D. The disposition (character) of the accused person

ANSWER: D

85. One of the following statements is WRONG about examination of witness?

A. The failure to ask cross examination does not amounts to admission

B. The calling party may ask an ordinary witness about his opinion in examination in-chief

C. If there is no cross- examination, there will not be re-examination

D. The judge may ask any question, including leading question, at any stage of examination

ANSWER: B

86. Which one of the following is true about the employment regime of Ethiopia?

A. Employees of state owned enterprises are the subject of Proclamation no 1064/2017

B. Employees of state administration are the subject of Proclamation no 1064/2017

C. Neither employees of state administration nor employees of state owned enterprises are the subject of Proclamation no 1064/2017

D. Both employees of state administration and employees of state owned enterprises are the subject of Proclamation no 1156/2019

ANSWER: B

87. Which one of the following is true about the labor and civil service regimes?

A. The duration of probation period in both regimes is similar

B. The duration of annual leave in both regimes is similar

C. The duration of maternity leave in both regimes is similar

D. The duration of paternity leave in both regimes is similar

ANSWER: C

88. Which one of the following statements is false about duration of contract of employment under Proclamation no 1156/2019

A. The only way of concluding a contract of employment for fixed duration will be on the basis of Article 10

B. A contract of employment will be terminated on the basis of Article 24/1/ only when it is concluded on the basis of Article 9

- C. A contract of employment for fixed duration can be a contract for indefinite period if it wasn't made in accordance with Article 10
- D. The main difference between contract of employment for indefinite period and definite period is in their regime of termination

ANSWER: B

89. Of the following one is false:

- A. Collective bargaining precedes collective agreement
- B. Formation of trade union precedes collective bargaining
- C. Collective agreement is made in oral form
- D. Each party to a collective bargaining shall bargain in good faith

ANSWER: C

90. Which one of the following statements is incorrect about female employees under the Labor Proclamation?

- A. Women shall not be discriminated against employment and payment on the basis of their sex
- B. An employer can't terminate the employment contract of a women during her pregnancy despite the reason for termination is not related to giving of birth and pregnancy
- C. An employer shall grant 30 days of prenatal and 90 days of post natal leave with pay
- D. The principle of non discrimination may be deviated through what is so called "inherent job requirement or genuine occupational qualification."

ANSWER: B

91. Which one of the following is true about labor dispute resolution mechanisms under the labor proclamation

- A. The Labor Relations Board has no jurisdiction to hear and decide on collective labor disputes
- B. Regular Courts have no jurisdiction to hear and decide on individual labor disputes

- C. Both the Labor Relations Board and Regular Courts have jurisdiction to hear and decide on individual labor disputes
- D. Labor disputes are subject to social dialogue and conciliation

ANSWER: D

92. Which one of the following is false about period of limitation under the Labor Proclamation
- A. A worker cannot claim for reinstatement after 3 months are lapsed from the date of termination
 - B. Any claim on wages, overtime and related payments by the worker shall be barred by 6 months from the date it becomes due
 - C. Any kind of payment arising from termination shall be barred 6 months from the date of termination
 - D. A party aggrieved by the decision of first instance court may lodge an appeal to the labor division of an appellate court within 60 days from the date on which the decision was rendered

ANSWER: D

93. . If a person found violating social norms, he will not be
- A. Ridiculed
 - B. Condemned
 - C. Out casted
 - D. Imprisoned
 - E. Cursed

ANSWER: D

94. Leadership & managerial ethics are essential for judges to discharge their — role
- A. Adjudicatory
 - B. Advisory
 - C. Administrative
 - D. Technical
 - E. All

ANSWER: C

95. Identify the wrong correlation about the theories of ethics

- A. Right way → Right result → consequentialism
- B. Right way → Right result → non consequentialism
- C. Right way → Wrong result → non consequentialism
- D. Wrong way → Wrong result → consequentialism
- E. Wrong way → Right result → consequentialism

ANSWER: D

96. Pursuant to the federal court advocates' code of conduct regulation №. 57, one of the following is a good cause for the decline of advocacy services

- A. Speculation that the potential client has committed the alleged crime
- B. Appalling nature of the alleged crime
- C. Request for illegal advocacy service
- D. Moral character of the potential client
- E. Social or economic status of the potential client

ANSWER: C

97. Which of the following is a key principle of the Positive School of thought within legal philosophy?

- A) Natural law is the basis of legal validity and moral authority.
- B) Laws should be based solely on the individual's rights and freedoms.
- C) Legal decisions should be guided by empirical evidence and scientific analysis.
- D) The state should be minimized in favor of individual autonomy.

ANSWER: C

98. Those who advocate for the revival of the Natural School of thought believe that:

- A) Laws should be based on objective, universal principles of morality.
- B) Legal decisions should be guided by the preferences and desires of individuals.
- C) Legal validity should be determined solely by the approved legal authorities.
- D) Law should be neutral and not influenced by personal beliefs or morality.

ANSWER: A

99. According to Rawls' original position, individuals should make moral and political decisions:

- A) Based on their lived experiences and subjective preferences.
- B) Based on their own natural abilities and talents.
- C) As rational and self-interested agents in a hypothetical scenario.
- D) By using their personal moral reasoning to determine the best course of action.

ANSWER: C

100. Hart's concept of primary and secondary rules refers to the distinction between:

- A) Laws that are created by the state versus laws that exist naturally.
- B) Moral principles that are universally valid versus moral principles that are culturally specific.
- C) Rules that create legal obligations and rules that guide the interpretation of legal obligations.
- D) The essential principles of justice versus the code of ethics that lawyers must abide by.

ANSWER: C